

24STCV23170 24STCV23170

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-08

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C07%2F08%2F2026

Source SHA-256: ab9a63279e8ef1c6f929bcf8fe21ad29200e4934e4c6593435a569dde5d7645f

Case Number: 24STCV23170 Hearing Date: July 8, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:01 PM on July 6, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 7, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

alleges that he accrued \$9,000 in parking tickets and when he attended a city hall meeting to have the tickets dismissed, where he also presented solutions for various problems, and wanted a new law to not give delivery drivers tickets. Plaintiff alleges infliction of emotional distress due to the numerous parking tickets which have

impacted his financial condition. He also alleges that the homeless situation caused him emotional distress when he worked as hotel concierge, and the failure to fix potholes which caused Plaintiff's car damage. Plaintiff also alleges that the conditions at the city dog shelters and school shootings have caused him emotional distress.

Defendant

City of Los Angeles moves for judgment on the pleadings as to the First Amended Complaint.

TENTATIVE RULING

Defendant City of Los Angeles' motion for judgment on the pleadings as to the entire First Amended Complaint is DENIED.

ANALYSIS

Motion For Judgment On The Pleadings

Request

For Judicial Notice

Defendant requests that the Court take judicial notice of the following:

1. Plaintiff's

January 20, 2023, Government Claim that was presented to the City.

GRANTED.

"The court may take judicial notice of the filing and contents of a government claim, but not the truth of the claim. (Citations omitted.) (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 368 n.1 [taking judicial notice of government claim filed against a city].)

2. Plaintiff's

February 11, 2024, Government Claim that was presented to the City.

GRANTED. See above at 1.

3. Plaintiff's

September 14, 2024, Government Claim that was presented to the City.

GRANTED. See above at 1.

4. The Complaint

filed June 6, 2023, in case 23STCV12822.

GRANTED. (Evid Code § 452(d)(court records).)

5. The March

15, 2024, Minute Order in case 23STCV12822,.

GRANTED. (Evid Code § 452(d)(court records).)

6. The Court's tentative ruling, which was

adopted as the Court's final Order on the Motion for Judgment on the Pleadings on March 15, 2024, and which was attached as Exhibit "A" to the Notice of Ruling filed March 19, 2024.

GRANTED. (Evid Code § 452(d)(court records).)

7. The Court's ruling on June 25, 2025 in case

24STCV23170 on the City's Demurrer to Plaintiff's First Amended Complaint- which is attached as Exhibit "G" to this Request.

GRANTED. (Evid Code § 452(d)(court records).)

Meet and

Confer

The

Declaration of Carr A. Tekosky indicates that Defendant's counsel satisfied the meet and confer effort set forth in Civ. Proc. Code, § 439(a).

Discussion

The

Court has reviewed the moving, opposing and reply briefs filed by the parties. Plaintiff also filed the following documents:

¿ April

21, 2026: Supplemental Memorandum Of Points & Authorities In Support Of My Recently Filed Opposition To Defendant's Motion For Judgment On The Pleadings.

This

is a 2 ½ page single-spaced brief.

The

Court notes that Plaintiff's Opposition was a 6 ½ page single-spaced brief.

The Court will give the benefit of the doubt that if these two briefs had been properly-spaced, they would have fallen within the 15-page limit set forth in Cal. Rules of Court 3.1113(d).

¿ April

30, 2026: Noticed Of Corrected Titles/Typos from initially submitted filing of: Supplemental Memorandum Of Points & Authorities In Support Of My Recently Filed Opposition Vs Defendants. To Defendant's Motion For Judgment On The Pleadings.

It

is not clear what corrections were made to the brief filed on April 21, 2026, but the Court will consider this brief instead of the one filed on April 21, 2026.

¿ May

12, 2026: Notice to inform the Court of severe, ongoing damages and continuing physical and emotional distress. These injuries directly result from the Defendant City of Los Angeles' ("City") failure to maintain safe public roadways and the systemic, operational negligence of its official Government Claims' portal.

This

document appears to serve the function of an amendment to the complaint and will be disregarded as not being an authorized amendment to the complaint.

¿ July

2, 2026: Supplemental Objection To Dismantle Legal Errors Of Law Made In The LA City Reply ISO.

This

document was filed one-day after the Reply and constitutes an unauthorized sur-reply. The Court will disregard this document.

On a motion for judgment on the pleadings, the same rules applicable on demurrer apply. (County of Orange v. Association of Orange County Deputy Sheriffs (2011) 192 Cal.App.4th 21, 32-33.)

(g) The motion provided for in this section [i.e., judgment on the pleadings] may be made even though either of the following conditions exist:

(1) The moving party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that there has been a material change in applicable case law or statute since the ruling on the demurrer.

(2) The moving party did not demur to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section.

(Code Civ. Proc. § 438(g)(1) & (2).)

Here, Defendant did not demur on the ground of failure to timely present a government claim, so this motion for judgment on the pleadings is permitted by Code Civ. Proc. § 438(g)(2).

Defendant

City of Los Angeles moves for judgment on the pleadings as to the entire First Amended Complaint on the ground that the 1AC fails to allege compliance with the Government Claims Act because there is a variance between the claim number C23-25196 Plaintiff submitted on January 20, 2023 (1AC, Page 6:14) and the claims in his 1AC.

Defendant

also argues that Plaintiff failed to present the claim timely and is now barred from bringing suit. Plaintiff presented a Government Code claim on February 11, 2024, claim number C24-06109, alleging personal injuries supporting the claims made in the instant case. RJN Exh. B. In his claim, Plaintiff states that his injuries accrued on May 8, 2023. February 11, 2024 is more than six months after May 8, 2023, and as such Plaintiff failed to timely present his claim- and therefore his claims are barred.

Defendant

argues that the claim Plaintiff presented on September 14, 2024—claim number C25-01751—is untimely and Plaintiff did not properly seek leave to file a late claim.

Plaintiff

argues that Defendant's is a procedurally improper attempt to secure a "second bite at the apple:" having already lost on their Demurrer, the City now seeks to re-litigate the same issues of "uncertainty" and "immunity" that this Court has already deemed sufficient to proceed.

Plaintiff

also argues that the City's motion ignores their own failure to follow the Government Claims Act, effectively waiving the very defenses they now try to assert by remaining silent. (Gov. Code, §§ 910.8, 911.) Plaintiff argues there has been no material change in the law to justify this motion for judgment on the pleadings pursuant to Code Civ. Proc. § 438(g)(1).

The Court

finds that Defendant, as the moving party, did not demonstrate that it avoided a waiver pursuant to Gov. Code § 911.3, which states:

(a) When a claim

that is required by Section 911.2 to be presented not later than six months after accrual of the cause of action is presented after such time without the application provided in Section 911.4, the board or other person designated by it may, at any time within 45 days after the claim is presented, give written notice to the person presenting the claim that the claim was not filed timely and that it is being returned without further action. The notice shall be in substantially the following form:

"The claim you presented to the (insert title of board or officer) on (indicate date) is being returned because it was not presented within six months after the event or occurrence as required by law. See Sections 901 and 911.2 of the Government Code. Because the claim was not presented within the time allowed by law, no action was taken on the claim.

Your only recourse at this time is to apply without delay to (name of public entity) for leave to present a late claim. See Sections 911.4 to 912.2, inclusive, and Section 946.6 of the Government Code. Under some circumstances, leave to present a late claim will be granted. See Section 911.6 of the Government

Code.

You may seek the advice of an attorney of your choice in connection with this matter. If you desire to consult an attorney, you should do so immediately.”

(b) Any defense as to the time limit for presenting a claim described in subdivision (a) is waived by failure to give the notice set forth in subdivision (a) within 45 days after the claim is presented, except that no notice need be given and no waiver shall result when the claim as presented fails to state either an address to which the person presenting the claim desires notices to be sent or an address of the claimant.

(Gov. Code § 911.3 [bold emphasis added].)

Defendant

has not provided the Court with evidence of any written notice to Plaintiff that the claim was untimely. [1] As such, Defendant has failed to demonstrate that it avoided a waiver pursuant to Gov. Code § 911.3(d).

While Defendant

argues in the reply that it would be futile to provide the notice required by Gov. Code § 911.3(a) where the claim was presented more than a year after the cause of action accrues because leave to present a late claim can be granted only when a claimant applies “within a reasonable time not to exceed one year after the accrual of the cause of action.” Gov. Code § 911.4(b). However, Gov. Code § 911.3(a) expressly applies to any claim presented after six months after accrual of the cause of action and does not exempt claims filed more than a year after such accrual. Pursuant to the terms of Gov. Code § 911.3(b), the defense is waived by failure to such notice. “We refuse to adopt an interpretation of a statute that would require insertion of language the Legislature knew how to include but did not include. (Citations omitted.)” (LNSU #1, LLC v. Alta Del Mar Coastal Collection Community Assn. (2023) 94 Cal.App.5th 1050, 1079.)

Further, as

to the substance of the claims which Plaintiff submitted, Defendant fails to address the substantial compliance doctrine regarding those claims attached to the request for judicial notice vis-à-vis the 1AC. The Court is not obligated to make arguments for the parties. (United Grand Corp. v. Malibu Hillbillies, LLC (2019) 36 Cal.App.5th 142, 153.)

The Government Claims Act requires only substantial compliance with the claims presentation requirement. (Citation omitted.) In *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447 [115 Cal. Rptr. 797, 525 P.2d 701], the state high court adopted a two-part test for determining whether there has been substantial compliance with the Government Claims Act: “Is there some compliance with all of the statutory requirements; and, if so, is this compliance sufficient to constitute substantial compliance?” (*City of San Jose*, at pp. 456–457.)

(*Westcon Construction Corp. v. County of Sacramento* (2007) 152 Cal.App.4th 183, 200 [italics in original].)

The claim-filing requirement of the Government Claims Act serves several purposes: (1) to provide the public entity with sufficient information to allow it to make a thorough investigation of the matter; (2) to facilitate settlement meritorious claims; (3) to enable the public entity to engage in fiscal planning; and (4) to avoid similar liability in the future. (Citation omitted.)

(*Westcon Construction Corp.*, *supra*, 152 Cal.App.4th at 200.)

The public policies underlying the claims presentation requirement include that the claim affords the entity an opportunity to promptly remedy the condition giving rise to the inquiry, thus minimizing the risk of similar harm to others, and permits the entity to investigate while tangible evidence is still available, memories are fresh, and witnesses can be located. The requirement also permits early assessment by the public entity, allows its governing board to settle meritorious disputes without incurring the added cost of litigation, and gives it time to engage in appropriate budgetary planning. (Citations omitted.)

Our Supreme Court expounded on the purposes of the law in *Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446 [20 Cal. Rptr. 3d 176, 99 P.3d 500] (*Stockett*): “The purpose of these statutes is ‘to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation.’ (Citation omitted.) Consequently, a claim need not contain the detail and specificity required of a pleading, but need [*1291] only ‘fairly describe what [the] entity is alleged to have done.’ (Citations omitted.)

As the purpose of the claim is to

give the government entity notice sufficient for it to investigate and evaluate the claim, not to eliminate meritorious actions (citation omitted), the claims statute 'should not be applied to snare the unwary where its purpose has been satisfied' (Citation omitted.)"

On

the next page the court elaborated, noting that "The claim, however, need not specify each particular act or omission later proven to have caused the injury. (Citation

omitted.) A complaint's fuller exposition

of the factual basis beyond that given in the claim is not fatal, so long as the

complaint is not based on an 'entirely different set of facts.' (Citation omitted.) Only where there has been a 'complete shift in allegations, usually involving an effort to premise civil liability on acts

or omissions committed at different times or by different persons than those described

in the claim' have courts generally found the complaint barred. (Citation omitted.) Where the complaint merely elaborates or adds

further detail to a claim, but is predicated on the same fundamental actions or

failures to act by the defendants, courts have generally found the claim fairly

reflects the facts pled in the complaint. (Citation omitted)

(California-American Water Co. v. Marina Coast Water Dist. (2022) 86 Cal.App.5th

1272, 1290-1291 [bold emphasis and underlining added].)

For the foregoing reasons, Defendant's

argument is not persuasively presented in this motion. The motion for judgment on

the pleadings as to the entire 1AC is DENIED. Nothing prevents Defendant from properly

presenting the argument by way of a motion for summary judgment.

[1] In all

claims attached to Defendant's request for judicial notice, Plaintiff had set

forth an address for return correspondence.